	Do Business Academy LLC	action is granted. [ROA 62.] Defendant is ordered to file a responsive pleading no later than September 4, 2026. The case management conference is continued to January 25, 2027 at 10:00 a.m. in Department C27. Moving party is ordered to give notice.
109	2024-01396208 Perez vs. Torre	**1. Motion for Reclassification** **2. Trial Setting Conference** **3. Order to Show Cause re: Monetary Sanctions** The motion by Defendant Trisha Katherine Torre ("Defendant") for an order reclassifying this action from an unlimited civil case to a limited civil case is denied. As an initial matter, Defendant's proof of service shows that her reply was served on third parties in a different action, *Abba v. Gadea, et al*., Case No. CIVSB2405744, rather than on Plaintiffs. Accordingly, the Court will not consider the reply unless Defendant demonstrates proper service before the hearing. Under Code of Civil Procedure section 403.040, a court may reclassify a case from unlimited to limited civil when the case has been misclassified – that is, if the amount in controversy is $35,000 or less. (Code Civ. Proc., § 403.040, subd. (a); *see, Stern v. Superior Court* (2003) 105 Cal.App.4th 223, 230; *see also* Code Civ. Proc., §§ 85, 88 [defining limited and unlimited civil cases].) The amount in controversy is the amount the plaintiff seeks to recover, excluding attorneys' fees, interests, and costs. (Code Civ. Proc., § 85.) The governing standard for reclassifying a case from unlimited to limited jurisdiction is found in *Walker v. Superior Court* (1991) 53 Cal.3d 257. Pursuant to *Walker*, a trial court must conclude that the amount in controversy will "necessarily" fall short of the jurisdictional minimum before transferring a case from unlimited to limited jurisdiction. (*Id*., at 270.) Appellate courts have underscored the high threshold set by *Walker*: "[The plaintiff] may well not prevail on the factual disputes regarding the extent of his injuries . . . . But a [*Walker*] hearing is not to be perceived as a minitrial or an opportunity for a trial judge to put forth a well-educated guess of a verdict. The unlikeliness of a judgment in excess of $25,000 is not the test. The trial court reviews the record to determine whether the result is obtainable. Simply stated, the trial court looks to the possibility of a jurisdictionally appropriate verdict, not to its probability." (*Maldonado v. Superior Court* (1996) 45 Cal.App.4th 397, 402.) When a defendant brings a motion to reclassify after the time to respond to the complaint, the defendant must show not only that the case was misclassified but also good cause for not bringing the motion earlier. (Code Civ. Proc., § 403.040, subd. (b).) No definite standard or formula is prescribed by law to fix reasonable pain and suffering compensation. Indeed, the law does not permit opinion testimony on the amount of such reasonable compensation, and argument urging a particular calculation or amount cannot be considered evidence. (*Loth v. Truck–A–Way Corp.* (1998) 60 Cal.App.4th 757, 764-768.) Rather, the calculation is left to the jury's subjective discretion: The jury is specifically instructed on the absence of a fixed standard in arriving at a pain and suffering award, the only guideline being "a reasonable amount based on the evidence and your common sense." (CACI 3905A; *see, Greater Westchester Homeowners Ass'n v. City of Los Angeles* (1979) 26 Cal.3d 86, 103.)

		Defendant has not established that the action was incorrectly classified. Although Plaintiffs identified $5,738.38 in medical expenses and approximately $2,300 in property damage, their discovery responses do not limit their claims to those amounts. Both Plaintiffs reported continuing back pain and discomfort and asserted claims for general damages, including pain, suffering, anxiety, emotional distress, and future harm. (Wei Decl., ¶¶ 3–5, Exs. B–C [responses to Form Interrogs. Nos. 6.3, 7.1–7.3 & 9.1].) Plaintiffs also reserved the right to amend their responses as discovery continued. (Wei Decl., ¶¶ 3–4, Exs. B–C.) Moreover, although Plaintiffs' Statement of Damages and Settlement Conference Statement do not conclusively establish the value of their claims, both indicate that Plaintiffs seek more than $35,000. (Lopez Decl., Exs. A–B.) Accordingly, Defendant has not established to a legal certainty that Plaintiffs' damages will necessarily be $35,000 or less. Thus, the motion is denied. The OSC is discharged. Parties should be prepared to discuss trial dates. Plaintiffs shall give notice.
110	2023-01323759 Honarkar vs. Makhijani	**1. Petition to Confirm Arbitration Award** **2. ADR Review Hearing** The petition of Plaintiffs Mohammad Honarkar and 4G Wireless, Inc. for an order confirming the arbitrator's Final Award issued on 5/12/26 is granted. The Court will hear from counsel as to the terms of a proposed judgment to be submitted that will not infringe on Preferred Bank's Complaint-in-Intervention. **Background Facts** In this action, Plaintiffs asserted claims against Mahender Makhijani, Continuum, various MOM-named entities, and others arising out of a real estate joint venture gone wrong. [First Amended Complaint ("FAC" – ROA #145).] In the FAC, Plaintiffs alleged Plaintiff Honarkar had already initiated arbitration proceedings. [*Id.*, ¶ 6.] On 8/3/23, JAMS appointed the Honorable David A. Thompson (Ret.), formerly a judge with the Orange County Superior Court and a justice on the 4/3 Court of Appeal, as arbitrator. [Plaintiffs' Prior Petition (ROA # 413), ¶ 22.] In a separate action, MOM AS Investor Group LLC, MOM BS Investor Group LLC, and MOM CA Investor Group LLC, sued Honarkar. Orange County Superior Court case no. 2023-01322886 (the "related action"). In the related action, on 9/25/23, the Court ordered the dispute against Honarkar to be arbitrated pursuant to an arbitration provision in the operating agreements for the "MOM LLCs." These operating agreements are attached to Plaintiffs' petition (ROA #413) as Exhibits C-E. [*See* also, Plaintiffs' Prior Petition, ¶ 17.] The 5/24/21 binding term sheet, to which respondent Continuum Analytics, Inc. is a party and signatory (through Mahender Makhijani signing on behalf of Continuum), contains an identical arbitration clause. [Plaintiffs' Prior Petition, ¶ 18 and Ex. F at 10.]